

Call Script — TN DOR Financial Control

Civvix Inc.

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Make this call before anything is sent. It costs nothing and it resolves the one question that could restructure the whole engagement.

The question that was blocking

Every published description of the situs-report process is written for *cities*. MTAS publishes the how-to; TML lobbied for the enabling legislation. CTAS — the county-facing counterpart — does not mention situs verification anywhere. T.C.A. § 67-1-1704(d) says “unit of local government,” which plainly includes counties, but no instance of a county pulling a situs report had been found.

That gap has now substantially closed. Knox County Procurement **RFP #2969, “Tax Consulting Services,”** solicits exactly this work: audit the situs reports of local governments, identify taxpayers whose situs code belongs in Knox County but whose collections were reported elsewhere, prepare correspondence, coordinate with the Department of Revenue, report to Knox County Finance. A Tennessee county has procured a county-level situs audit. Ask the confirming question anyway, but ask it from a position of knowledge.

Ask, in this order

1. **“We’re a Tennessee county finance office setting up REP access for a situs report under § 67-1-1704(d). What’s the process, and is there anything different about a county request versus a city request?”** *Listen for hesitation. If they say they’ve never done one for a county, cite Knox County RFP #2969 as evidence the work is being procured at county level, and ask what the county needs to file.*
2. **“What’s the authority for the one-year correction lookback — is that statutory or Department policy?”** MTAS states the Department corrects back only one year from notification. **No statutory basis has been found.** If they cite a statute, get the section. If they cite policy, ask what the exception process is. This materially changes the value of a first engagement, because the back-money is where the first year’s value sits.
3. **“We’ll be using an outside contractor under § 67-1-1704(e). Does the Department require the contractor to be formally designated? Is there a form? What documentation should the county retain?”** Unknown mechanics. Ask in the same call.
4. **“Is there a machine-readable situs-code table and current field definitions for the report?”**
5. **“For a business whose registration shows a PO Box or a mailing address in one jurisdiction and a physical location in another, what does the Department treat as controlling for situs?”** § 67-6-903 sources to the seller’s “place of business,” which should mean the physical location, but no DOR guidance expressly addressing PO Boxes was found. Four of Wilson County’s ZIPs are PO-Box-only. This is the single most useful substantive answer available on this call.

6. **“Which local jurisdiction receives a contractor’s use tax?”** § 67-6-209 does *not* govern this — it covers property produced or severed from the earth and expressly excludes ordinary construction contractors. No statute or rule specifying contractor use-tax situs was located.

Separate question, for counsel not for DOR

Can data obtained under § 67-1-1704(e) for County A inform work for County B? The disclosure is authorized “for the purpose of ascertaining whether allocations ... are being distributed to the correct unit of local government” — arguably *that* jurisdiction’s allocations. If each county’s roster is siloed, the statewide Civvix asset cannot be assembled from client data and has to come from independent public sources. **Resolve this before the second county signs, not after.**

(Note: the prototype in this repository is built entirely from independent public sources, which is one reason to keep it that way. A public-data boundary and exception surface travels between counties without ever raising this question.)